

		The Golden Rule of Summary Adjudication requires all material facts be set forth in the separate statement – “if it is not set forth in the separate statement, <i>it does not exist.</i>” (<i>United Community Church v. Garcin</i> (1991) 231 Cal.App.3d 327, 337.) Because Defendant did not meet its initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468.) Accordingly, the motion is denied as to this issue. Issue 5: Claim for Punitive Damages: Fails because Plaintiff has no evidence of oppression, fraud, or malice by AHM. Defendant did not meet its initial burden on this issue. Although the parties addressed this issue in their memorandums, Defendant did not address this issue in Defendant’s separate statement. The Separate Statement in support of a motion must separately identify each claim for damages that is the subject of the motion and each supporting material fact claimed to be without dispute with respect to claim for damages that is the subject of the motion. (Cal. Rules of Ct., Rule 3.1350(d).) “The supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., § 437c, subd. (b)(1).) The Golden Rule of Summary Adjudication requires all material facts be set forth in the separate statement – “if it is not set forth in the separate statement, <i>it does not exist.</i>” (<i>United Community Church v. Garcin</i> (1991) 231 Cal.App.3d 327, 337.) Because Defendant did not meet its initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468.) Accordingly, the motion is denied as to this issue. Defendant is ordered to give notice.
102	2023-01352224 Lindeman vs. FCA US, LLC	Motion to Substitute Plaintiffs’ Motion to Substitute Successor Trustee Ropey Trujillo in Place of Deceased Plaintiff, Charles Lindeman, is granted. “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc., § 377.31.) Here, the Successor Trustee, Ropey Trujillo, has submitted a declaration that complies with all the requirements of CCP section 377.32. (ROA 164.) As such, the Court grants the motion and orders Ropey Trujillo, as Successor Trustee, be substituted for Charles

		Lindeman as a plaintiff in this action. Plaintiffs shall give notice of the ruling.
103	2024-01410627 First Bank of the Lake vs. ASM Bistro LLC	1. Motion to Vacate 2. Motion to Vacate (1) MOTION TO VACATE DEFAULT Defendant Haydee Docasar M.D., P.C.’s motion to vacate the 2/2/26 default judgment is denied. Code Civ. Proc. § 473(b) states the following, in pertinent part: “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” Defendant’s motion is not timely. The six-month time limit in Code Civ. Proc., § 473(b) for discretionary relief runs from entry of <u>default</u>, not the entry of default judgment. (See <i>Rutan v. Summit Sports, Inc.</i> (1985) 173 Cal.App.3d 965, 970; <i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 39.) The motion was filed on 4/27/26. Default was entered on 10/10/24. (ROA 30.) In addition, Defendant failed to file a copy of the proposed responsive pleading, and more importantly, proof of service with the motion. (Code Civ. Proc., §§ 473(b), 1005(b); CRC, Rule 3.1300(a).) Furthermore, Defendant fails to establish excusable neglect or that the default judgment is void. Defendant states that she was engaged in the bankruptcy proceedings during the period in which a responsive pleading to this complaint was required, and thus those demands should excuse her conduct. This is not excusable neglect. (See e.g., <i>Davis v. Thayer</i> (1980) 113 Cal.App.3d 892, 905-906 (court found that it was not grounds for relief because defendant could not afford a lawyer or that he was preoccupied with the pending criminal proceedings against him as defending a criminal case does not prevent a person from defending a civil suit as well).) Contrary to Defendant’s arguments, Defendant Haydee Docasar’s Ch. 7 bankruptcy discharge as to her, individually, does not also discharge Haydee Docasar M.D., P.C. An individual is not the same as a corporation for bankruptcy purposes. There is no indication that Plaintiff’s service of summons was invalid or that the Court lacks jurisdiction. Thus, no showing has been made that the default judgment is void. Based on the foregoing, the motion is denied. The clerk shall give notice. (2) MOTION TO VACATE DEFAULT